

MADISON AND THE FEDERAL NEGATIVE

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During the post-Revolutionary War era, after fighting for seven years to separate itself from Great Britain, the newly formed United States was struggling to establish a functioning and stable country. The weak economic status post-war did not help in this endeavor. According to historian Kenneth Moss, “Congress had accumulated 27 million in debt during the war.” This debt resulted from the cost of fighting the war and from borrowing money from their allies like the French Republic. The loans needed to be paid back immediately to improve the country’s credit; however, the Articles of Confederation, the document that, at the time, gave the federal government its power, did not allow the government to impose national taxes. To combat this, most of the debt was passed on to the states, and in turn, Moss states, “many state governments raised taxes to pay off war debts.” This aided in the economic recession which left many citizens in difficult financial positions. Individual debtors found it difficult to pay back their obligations. Additionally, soldiers from the war had to accept bonds as payments. Consequently, many people started petitioning for debt relief. State legislators responded to this “by issuing substantial amounts of paper money, thereby allowing debtors to repay their debts in inflated currency” (Moss). While a good idea in theory, the more money that was in circulation, the less value it held, causing in high inflation rates.

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Like many of the other founding fathers, James Madison was a well-educated and well-read man. During the post-revolutionary era, he studied a multitude of books spanning thousands of years that he hoped would provide insight on how to improve the United States government. His readings ranged from ancient Greek confederacies to recent French works from the Enlightenment, and “he noted that several confederation

governments had been unable to control their members, even in areas where they held explicit authority” (Moss 9). Madison connected the failures of these past confederacies to the struggles of the United States, drawing the conclusion that more power at the federal level was necessary to uphold a nation. These theories were in fact true; the new government already seemed to be failing under the authority of the Articles of Confederation. For example, in the Shays’ rebellion, “Daniel Shays was so angry at the plight of the farmers [...] [that] he helped to lead a growing rebellion in western Massachusetts”, which the federal government was useless in stopping (Moss 8). This and other incidents like the struggling economy and the states’ disregard for the Treaty of Paris proved that a stronger government was of the utmost importance for the longevity of the United States.

90 During the Constitutional Convention, James Madison and other delegates from across the United States came together in 1785 to discuss amending the Articles of Confederation. It is here where Madison first proposed the accumulation of all his readings, the federal negative. In summary, the federal negative gives the federal government the power to veto laws. Madison proposed a partial federal negative which “limited Congress’s veto to only state laws contriving in the opinion of the national legislator” and “all laws which Congress should judge to be improper” (Moss 14). However, there were discussions of an absolute federal negative in which all laws could be vetoed by the government; yet, these discussions provoked fear in some as they believed this would “enslave the states” (Moss 15). Additionally, this power could help stop the conflict between states and could make it more difficult for foreign nations to take advantage of the United States as a whole.